

Bhupendra Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 20 February 2023 · WRIT - C No. 2360 of 2023 · **Writ disposed after the theft recovery was withdrawn; liberty to pass a fresh Supply Code order.**

HEADNOTE

Bhupendra Singh challenged a demand notice dated 14 September 2021 issued by respondent no. 2 of Dakshinanchal Vidyut Vitran Nigam Ltd. for recovery of dues in a theft-of-electricity case. The Court kept recovery in abeyance and required respondent no. 2 to show whether the procedure under the U.P. Electricity Supply Code, 2005 for a theft assessment had been followed. A Junior Engineer's affidavit was not accepted: it was not that of respondent no. 2 and contained no factual assertion of how the Code procedure had been followed. Respondent no. 2 was directed to appear with the records and, if the procedure had not been followed, to remedy the wrong. He then stated that the impugned recovery had been withdrawn and sought liberty to pass a fresh order. The writ was disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court did not decide whether that procedure had been followed, or the merits or quantum of the theft demand.

FACTUAL SUMMARY

Bhupendra Singh filed Writ-C No. 2360 of 2023 against Dakshinanchal Vidyut Vitran Nigam Ltd. and two others. He challenged a demand notice dated 14 September 2021 issued by respondent no. 2 for recovery of electricity dues in a theft-of-electricity case.

On 24 January 2023 Manoj Kumar Gupta and Vikram D. Chauhan, JJ. directed the Electricity Department to say whether the Supply Code procedure for a theft assessment had been followed and, if not, required respondent no. 2 to show cause. Recovery was kept in abeyance. After two adjournments, the affidavit produced on 15 February 2023 was that of a Junior Engineer, not respondent no. 2, and stated no facts showing how the Code procedure had been followed. The Court, then comprising Manoj Kumar Gupta and Syed Qamar Hasan Rizvi, JJ., directed respondent no. 2 to appear with the records on 20 February 2023 and to remedy the wrong if the procedure had not been followed. He appeared and filed his own affidavit, stating that the impugned recovery had been withdrawn and that liberty was sought to pass a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::theft-assessment

Theft recovery withdrawn; fresh order strictly under the Supply Code

QUESTION

What order follows when the licensee withdraws a theft-of-electricity recovery and seeks liberty to pass a fresh order?

HOLDING

Where respondent no. 2 states that the impugned recovery in a theft-of-electricity case has been withdrawn and seeks liberty to pass a fresh order, the writ is disposed of with liberty to the concerned respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ order of 20.02.2023

QUALIFIER

The disposal records the licensee's withdrawal. The Court did not hold that the Code procedure had been breached and did not quash the demand notice dated 14.09.2021.

FLAG Unnumbered order-sheet of five orders (24.01.2023, 01.02.2023, 06.02.2023, 15.02.2023, 20.02.2023). No clause is numbered. The catalog hit UP-2005::6.2 does not fit: the Court spoke only of the Supply Code procedure for assessment in a case of theft of electricity. Keyed to UP-2005::theft-assessment. The disposing coram is Manoj Kumar

PRINCIPLE TAGS

recovery-withdrawn-fresh-supply-code-order On respondent no. 2's personal affidavit that the impugned theft recovery had been withdrawn, the writ was disposed of with liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, without a decision on the demand.

¶ order of 20.02.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SUPPLY CODE PROCEDURE FOR A THEFT ASSESSMENT HAD BEEN FOLLOWED BEFORE THE DEMAND NOTICE DATED 14.09.2021

The Court called for that explanation, rejected a vague Junior Engineer affidavit as not that of respondent no. 2, and required him to appear with the records. Before any finding, he stated that the recovery had been withdrawn.

¶ orders of 24.01.2023, 15.02.2023 and 20.02.2023

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN, AND THE QUANTUM OF THE WITHDRAWN DEMAND

Left to any fresh order passed strictly under the U.P. Electricity Supply Code, 2005. ¶ order of 20.02.2023